

24STCV20225 24STCV20225

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Case Number: 24STCV20225 Hearing Date: August 10, 2026 Dept: 617

Dept.

617

Date:

8-10-26

Case

#: 24STCV20225

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Diana Sandoval and Jonathan Sims

RESPONDING

PARTY: Plaintiff, Luis Sandoval

RELIEF

REQUESTED

Demurrer

to Second Amended Complaint

SUMMARY

OF ACTION

On

July 27, 1993, Plaintiff Luis Sandoval and his mother, Isabel Gonzalez, jointly purchased a property located at 1670 Roosevelt Avenue, Los Angeles, CA 90006.

Plaintiff's aunt and uncle, Maria Mares and Rogelio Mares, "joined in the purchase." On June 7, 1994, the Mareses transferred their interest in the property to Isabel and Plaintiff. Defendant Diana Sandoval later moved into the property with her son, Defendant Jonathan Sims. On October 3, 2001, Isabel and Plaintiff transferred the property to Isabel and Diana. Plaintiff alleges that neither Diana nor Sims paid rent or contributed to mortgage payments while living on the property, leaving Plaintiff to make most mortgage payments.

Plaintiff

further claims that Diana unduly influenced Isabel to create a trust and will that left all of Isabel's property to Diana and disinherited Plaintiff. Isabel later passed away in August 2022. Plaintiff alleges Diana's negligent care of Isabel under an advance health care directive as well as financial misappropriations during and after their mother's illness.

On

January 16, 2026, Plaintiff filed a Second Amended Complaint for: (1) Undue Influence; (2) Fraud; (3) Financial Elder Abuse; (4) Breach of Oral Agreement; (5) Breach of Implied Agreement; (6) Intentional Infliction of Emotional Distress – Outrageous Conduct; (7) Intentional Infliction of Emotional Distress – False Accusations; (8) Slander and Intentional Infliction of Emotional Distress – Reckless Disregard; (9) Breach of Fiduciary Duty – Embezzlement from Mother Before Death; (10) Negligence – Wrongful Death.

RULING: Sustained in part.

Request

for Judicial Notice: Granted.

The

Court takes judicial notice of the existence of the First Amended Complaint filed in the instant action and the First Amended Probate Code Petition. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of the order in the probate matter as well as the truth of the

results reached therein. (Id. at pp. 885-86.)

Defendants demur to the Second Amended Complaint arguing that Plaintiff's claims are within the exclusive jurisdiction of the probate court and are barred by res judicata based on the probate court's prior order regarding Plaintiff's lack of standing, and are barred by the statute of limitations.

Defendants further contend the claims are inadequately pled.[1]

Plaintiff opposes the demurrer, denying his claims are barred and maintaining the sufficiency of his supporting allegations. Defendants' demurrer is sustained without leave to amend as to the causes of action for undue influence, breach of oral and implied agreement, intentional infliction of emotional distress, and breach of fiduciary duty. The demurrer is sustained with leave to amend as to the fraud and wrongful death claims. The demurrer is overruled as to the elder abuse claim.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Exclusive

Probate Jurisdiction and Res Judicata

The demurrer to the first and sixth causes of action for undue

influence and intentional infliction of emotional distress based on outrageous conduct is sustained without leave to amend because they are within the exclusive jurisdiction of the probate court. The probate court has exclusive jurisdiction over the “internal affairs of trusts.” (Prob. Code, § 17000, subd. (a).) This includes “[d]etermining the validity of a trust provision.” (Id. § 17200, subd. (b)(3).) Both causes of action challenge the trust provision disinheriting Plaintiff as invalid due to being a product of undue influence. [SAC ¶¶ 53-60, 85-90.] Thus, these claims are not properly before the Court and the demurrer to them is sustained without leave to amend. The remaining causes of action do not fall within the probate court’s exclusive jurisdiction because they address pre-trust contractual agreements and post-trust conduct that do not concern the validity of the disinheritance provision. For the same reasons, Defendants’ undisputed position that the prior probate court order dismissing Plaintiff’s petition for lack of standing as an “omitted heir” has no res judicata effect on these causes of action.

Statute of Limitations

The Court next addresses Defendants’ statute of limitations challenges. They argue that the fourth, fifth, eighth, and tenth causes of action for breach of oral and implied contract, slander and intentional infliction of emotional distress, and wrongful death are time-barred. While the challenges to the contract and slander claims prevail, the challenge to the wrongful death claim fails. Plaintiff’s discovery rule theory relies on his discovery of trust provisions and Diana’s purported misconduct in connection with them and is thus irrelevant to assessing the timeliness of these claims.

The contract and slander claims are time-barred. Both contract claims are based on an August 29, 2021 oral agreement in which Plaintiff agreed to transfer his interest in the property in exchange for Isabel and Diana’s promise to “make the payments on the Subject Real Property.” [SAC ¶ 74.] Plaintiff alleges Diana “breached the oral agreement by not making any payments on the Real Property while their mother was alive.” [Id. ¶ 77.] Because the statute of limitations for breach of a contract not founded upon an instrument of writing is 2 years (Code Civ. Proc., § 339(1)) and the alleged failure to make payments occurred well before Isabel’s death in August 2022, the filing of these claims in August 2024 was untimely. The slander claim alleges statements on August 17, 2022 and November and December 2024 that Plaintiff had “killed” Isabel and that he tried to run over Jonathan. [SAC ¶¶ 101-106.] The statute of limitations for slander is 1 year. (Code Civ. Proc., § 340,

subd. (c).) Therefore, the August 2024 complaint alleging the 2022 statement and the 2026 Second Amended Complaint alleging the 2024 statements make the claims untimely. The demurrer to these claims is therefore sustained without leave to amend.

Defendants' limitations challenge to the wrongful death claim fails. Defendants argue that the wrongful death claim must have been filed on August 17, 2024, 2 years following Isabel's death. However, Plaintiff asserted this claim before this date in his initial August 9, 2024 complaint. The statute of limitations challenge to this claim thus fails.

Sufficiency of Pleadings

The Court finally considers Defendants' challenges to the sufficiency of Plaintiff's pleadings.

Defendants argue that Plaintiff's fraud claim fails because it is not pled with particularity. The Court agrees. Fraud must be pled with specificity and requires "pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) Plaintiff alleges Diana represented to Isabel that she needed to have Diana on the property to obtain financing because Diana had "good credit" although there was a judgment against her. [SAC ¶¶ 62.] However, Plaintiff does not allege when Diana made this statement. Because there is a reasonable possibility that Plaintiff can cure this defect, the demurrer to this claim is sustained with leave to amend.

The demurrer to the elder abuse claim is overruled. Defendants' sole objection to the elder abuse claim is that Isabel was 64 at the time she created her trust and thus was not an elder. (Welf. & Inst. Code, § 15610.27 ["'Elder' means any person residing in this state, 65 years of age or older"].) However, Plaintiff alleges unauthorized withdrawals from Isabel's bank accounts in July 2022, when Isabel qualified as an "elder" under the statute. [SAC ¶¶ 45, 69-71.] The demurrer to this claim is therefore overruled.

The demurrer to the intentional infliction of emotional distress claim based on false accusations is barred by the litigation privilege. Statements made in a judicial proceeding are privileged. (Civ. Code, § 47, subd. (b).) "This

privilege is absolute in that it applies regardless of whether a statement was uttered with malice or bad faith.” (ITT Telecom Products Corp. v. Dooley (1989) 214 Cal.App.3d 307, 313-14.) The privilege is applicable here because the alleged false accusations made by Diana and Jonathan calling Plaintiff an “alcoholic” and accusing him of being on drugs were made in declarations and briefs filed with the probate court. [SAC ¶ 92.] The demurrer to this claim is therefore sustained without leave to amend.

The demurrer to the breach of fiduciary duty claim is also sustained without leave to amend. Defendants argue this claim fails because Plaintiff fails to allege a fiduciary duty owed. Plaintiff’s claim is premised on Diana’s alleged misappropriation of their aunt’s bank account, which was managed by Isabel and Diana. [SAC ¶¶ 49-50, 113-14.] These allegations fail to show Defendants owed a fiduciary duty to either Plaintiff or Isabel. The demurrer to this claim is therefore sustained without leave to amend.

Defendants’ demurrer to the wrongful death claim is sustained.

Defendants argue that Diana is shielded from liability because she had a health care directive. Plaintiff alleges that Isabel signed an advance health care directive designating Diana as her agent. [SAC ¶ 117.] Under Probate Code section 4741, “[a] person acting as agent or surrogate under this part is not subject to civil or criminal liability or to discipline for unprofessional conduct for health care decisions made in good faith.” An “agent” is an “individual designated in a power of attorney for health care to make a health care decision for the principal” (Prob. Code, § 4607, subd. (a).) This includes an advance health care directive. (Id. § 4605.) The complaint is devoid of allegations that Diana did not act in good faith in making health care decisions for her mother. Nonetheless, because there is a reasonable possibility that Plaintiff can cure this defect, he is granted leave to amend.

Plaintiff

is granted 20 days’ leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Because

the only claims that form any basis of liability against Jonathan have been sustained without leave to amend, Jonathan may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(1).)

Defendants
to give notice.

[1]

Defendants

also argue that the Second Amended Complaint is uncertain because it cannot be determined what capacity Diana is being sued and what claims are being asserted against Jonathan. The Court rejects both arguments. The caption and the complaint's allegations clearly indicate the Diana is being sued in her individual capacity. While the complaint does not specifically label which claims are being asserted against Jonathan, the allegations also indicate that he is being sued for alleged false accusations and as a beneficiary of the trust. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 [“[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].)